

Spotting a Claim at Intake

How to read an incoming complaint and decide, fast, whether a potential client likely has a TCPA, FDCPA, or Florida-analog claim worth pursuing.

Audience · Intake team

Statutes · TCPA / FDCPA / FL

Version · 1.1 DRAFT

Internal use only

One hard gate, then two moves. **First, check the 4-year clock** — if the voicemail or text is too old, the lead is rejected before anything else. **Then classify the message** — is it selling something, collecting a debt, or just a notice? **Then run it through the four screens**. If any screen hits, we likely have a claim: flag it, gather the evidence listed on the card, and route it to the right pipeline.

Check the 4-year clock

The TCPA has a **four-year statute of limitations**, so we can only pursue conduct from the last four years. Run this gate first — a time-barred lead is rejected no matter how strong the violation looks.

- Measure from the **date of receipt** of each qualifying voicemail or text — the clock runs from when the consumer got it.
- More than 4 years old → **automatic rejection**. The claim is time-barred; we can't take it.
- Within a few days of the cutoff → **also rejected**. We can't move fast enough to file before the deadline runs.
- Only contacts inside the 4-year window count. If every qualifying message is too old, reject — even on an otherwise clear violation.



Notify immediately. The moment you spot a statute-of-limitations problem, flag the lead and tell them right away — don't let an SOL rejection sit in the queue. Prompt notice lets them seek other counsel while they still can.

STEP 1

Classify the message

This is the gate. The message type decides which screens apply and which pipeline the case goes down. Get this right first.

Incoming call · text · voicemail

TELEMARKETING

Selling a product or service

The purpose is to sell — now or eventually. A "free webinar" or freebie that pitches at the end **still counts**. If selling is the goal anywhere in the funnel, it's telemarketing.

→ TCPA track (FTSA overlay if Florida)

DEBT COLLECTION

Collecting money owed

Someone trying to collect a debt the consumer supposedly owes. Different statutes, different pipeline — **but we still take these**.

→ FDCPA + Florida track (separate pipeline)

INFORMATIONAL

A pure notice

No sales purpose at all — an appointment reminder, shipping update, or account alert. Nothing to sell, no debt to collect.

→ No claim. Decline unless something else surfaces.

STEP 2

Run the four screens

Check the classified message against each screen below. Each card shows the trigger, who it applies to, and the evidence to collect from the client.

SCREEN 01

Prerecorded Voice

The easiest one — if it's a robot voicemail, you're done.

The consumer got a voicemail that is **pre-recorded or uses an artificial/robotic voice** — not a live person on the line. A single prerecorded voicemail is the violation by itself.

1 PRERECORDED VOICEMAIL

APPLIES TO ANY CALL

COLLECT FROM CLIENT

The voicemail audio (or a recording / screen capture), the caller's number, and the date & time.

SCREEN 02

Failure to Stop (IDNC)

Internal Do-Not-Call — they told them to stop, and they kept going.

The consumer sent **any reasonable opt-out** — "STOP," "unsubscribe," "no more," "remove me" — and got contacted again anyway. One automated **confirmation** ("You've been opted out") is allowed and does **not** count.

OPT-OUT + 1 MORE MESSAGE • 24H+

MARKETING → TCPA

DEBT → FDCPA + FL

COLLECT FROM CLIENT

Screenshots showing the opt-out message, the timestamps, and every message after it (including the confirmation text).

HOW SCREEN 02 PLAYS OUT

- TO **Consumer replies "STOP"**
- Moments later **One confirmation text — allowed, does not count**
- Wait 24h+ **Our buffer before counting a follow-up**
- After buffer **Another marketing message ⚠ Violation**

Debt collection is broader: once a consumer says stop, **any** further contact counts — a call or an email violates too, even with zero further texts. Route these to the FDCPA / Florida pipeline.

SCREEN 03

Quiet Hours

Contacting people in the middle of the night.

They called or texted the consumer **before 8:00 AM or after 9:00 PM** (consumer's local time) — at least twice inside that window.

2+ CONTACTS • 9PM – 8AM

MARKETING → TCPA

DEBT → FL LAW

COLLECT FROM CLIENT

Screenshots or call logs with timestamps showing 2+ contacts inside the quiet-hours window.

SCREEN 04

Do-Not-Call Registry

Their number is on a list — and a telemarketer hit them anyway.

Telemarketing **only** — debt collection does not apply here. The consumer's number is registered on a Do-Not-Call list. **We must verify registration through the API** — never just take the client's word.

FEDERAL • 2+ TELEMKTG / 12 MO

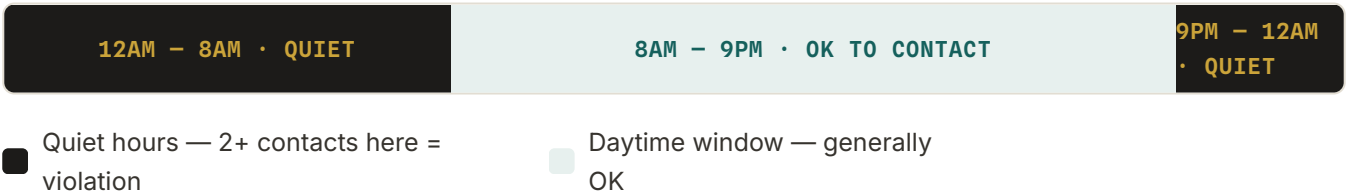
FLORIDA • 1 TELEMKTG CONTACT

TELEMARKETING ONLY

COLLECT FROM CLIENT

The messages (two can be months apart — Dec + Feb counts). Then we run the DNC API. Always check the Florida list when the consumer or company is in Florida — one contact is enough.

QUIET HOURS AT A GLANCE · CONSUMER'S LOCAL TIME



RECAP

The four screens at a glance

A quick cross-check. **Teal** ✓ = applies on the telemarketing/TCPA track · **clay** ✓ = applies on the debt-collection track.

Screen	Telemarketing	Debt collection	Informational	Trigger	Primary law
01 · Prerecorded voice	✓ Any call — the recording is the violation		×	1 voicemail	TCPA
02 · Failure to stop (IDNC)	✓	✓ separate pipeline	×	opt-out + 1 more contact	TCPA · FDCPA + FL
03 · Quiet hours	✓	✓	×	2+ contacts · 9PM-8AM	TCPA · FL law
04 · Do-Not-Call registry	✓	×	×	Fed 2+/12mo · FL 1	TCPA · FTSA (FL)

What trips people up

Check the 4-year clock first. Anything older than four years from the date received — or within a few days of the cutoff — is rejected, and the lead must be notified immediately.

The opt-out confirmation is allowed. A single "you've been opted out" reply is never the violation. Don't flag it.

The 24-hour buffer is our cushion, not the law. Waiting at least a day before counting a follow-up keeps weak files out of the pipeline.

Debt-collection "stop" covers every channel. A collector who calls or emails after a cease request violates — even with no further texts.

Always verify DNC registration via the API. Never rely on the client's belief that they're on the list.

Debt collection rides a separate track. It's FDCPA + Florida, not TCPA — route it to its own pipeline, don't run it down the TCPA path.

"Marketing" doesn't need a hard sell. If the funnel ends in a pitch, the message is telemarketing — even if it only offered something free.